



CHAPTER 33.

An Act to make provision in Scotland for the enrolment of assistant nurses for the sick, for the restriction of the use of the name or title of nurse, and for the regulation of agencies for the supply of nurses for the sick, and to amend the Nurses Registration (Scotland) Act, 1919. [5th August 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

ENROLMENT OF ASSISTANT NURSES.

1.—(1) It shall be the duty of the General Nursing Council for Roll of Scotland (in this Act referred to as "the Council") to form assistant nurses. and keep a roll of assistant nurses subject to and in accordance with the provisions of this Act.

(2) A certificate under the seal of the Council duly authenticated in the prescribed manner stating that any person is, or was at any date, or is not, or was not at any date, duly enrolled shall be evidence in all courts of law of the fact stated in the certificate.

2.—(1) The Council shall make rules for the following purposes— Rules.

- (a) for regulating the formation, maintenance and publication of the roll ;
- (b) for regulating the conditions of admission to the roll ;

PART I.
—cont.

- (c) for regulating the conduct of any examinations which may be prescribed as a condition of admission to the roll, and any matters ancillary to or connected with any such examinations ;
 - (d) for prescribing the causes for which, the conditions under which and the manner in which persons may be removed from the roll, the procedure for the restoration to the roll of persons who have been removed therefrom, and the fee to be payable on such restoration ;
 - (e) generally for making provision with respect to any matters with respect to which, the Council think that provision should be made for the purpose of carrying this Part of this Act into effect (including provision with respect to the issue of certificates to persons enrolled and with respect to the uniform or badge which may be worn by persons enrolled), and for prescribing anything which under this Part of this Act is to be prescribed.
- (2) Rules made under this section shall contain provisions—
- (a) requiring as a condition of the admission of any person to the roll that that person shall have undergone the prescribed training, and shall possess the prescribed experience, in nursing ; and
 - (b) requiring that the prescribed training shall be carried out in an institution approved by the Council in that behalf or in the service of the Admiralty, the Army Council or the Air Council or in a hospital managed by a Government Department ; and
 - (c) enabling persons who, within the period of two years after the date on which the rules to be made under the provisions of this paragraph first come into operation, make an application in that behalf (in this Act referred to as “an existing assistant nurse’s application”), to be admitted to the roll on producing evidence to the satisfaction of the Council that they are of good character, are of the prescribed age, are persons who were for at least the prescribed period before the passing of this Act bona fide engaged in practice as nurses under conditions which appear to the Council to be satisfactory for the purposes of this provision and have such knowledge and experience of nursing as to justify their enrolment.
- (3) Unless Parliament shall hereafter otherwise determine, nothing in rules made under this section shall enable a course of training begun after the expiry of five years from the commencement of this Act to qualify any person for admission to the roll.

PART I.
—cont.

(4) The Council shall make rules under this section enabling persons enrolled as assistant nurses in England and Wales and, if provision is made by the Parliament of Northern Ireland for the establishment of a roll of assistant nurses in Northern Ireland, persons enrolled as assistant nurses there, to obtain admission to the roll established under this Part of this Act.

(5) With a view to securing a uniform standard of qualification in all parts of the United Kingdom, the Council shall consult with the General Nursing Council for England and Wales and, if provision is made as aforesaid by the Parliament of Northern Ireland, with the body responsible for keeping the roll in Northern Ireland before making any rules or, as the case may be, any further rules under this section with respect to the conditions of admission to the roll.

3.—(1) There shall be a Committee of the Council, to be called the Assistant Nurses Committee (in this Act referred to as "the Committee"), constituted in accordance with the provisions contained in the First Schedule to this Act.

The Assistant
Nurses
Committee.

(2) Any matter which wholly or mainly concerns assistant nurses shall stand referred to the Committee and any other matter may be referred by the Council to the Committee; and the Committee shall consider the matter and report upon it to the Council, and the Council, before taking any action on the matter, shall, unless in the opinion of the Council the matter is urgent, receive and consider the report of the Committee:

Provided that the following matters, that is to say—

- (a) any question whether any person shall be removed from or restored to the roll, and any matter arising out of any such question; and
- (b) any other matter referred to the Committee in so far as the Council expressly authorise the Committee to deal with it,

shall be finally dealt with by the Committee on behalf of the Council, and the Committee shall make a report to the Council as to the way they have dealt with it.

(3) The Council may pay to members of the Committee sums (to be calculated in accordance with directions to be given by the Secretary of State) in respect of their travelling expenses and by way of subsistence allowance.

4.—(1) There shall be paid to the Council in respect of every application to be examined or to be enrolled under this Act, and in respect of the retention in any year of the name of any person on the roll, such fees respectively as the Council may, with the approval of the Secretary of State, from time to time determine:

PART I.
—cont.

Provided that—

- (a) in the case of an existing assistant nurse's application, the amount of the fee payable on the application shall be such sum, not exceeding one guinea, as the Council, with such approval as aforesaid, may determine; and
- (b) the amount of the fee payable in respect of the retention in any year of the name of any person on the roll shall not exceed two shillings and sixpence.

(2) It is hereby declared that the power conferred on the Council by subsection (2) of section five of the principal Act to charge fees for certificates and documents issued, and services performed, by them extends to certificates, documents and services issued and performed under this Part of this Act.

Appeal
against
removal from
roll, and
against
refusal to
approve
institution.

5.—(1) Any person aggrieved by the removal of his name from the roll may, within three months after the date on which notice is given to him by the Committee that his name has been so removed, appeal against the removal to the Court of Session, and on any such appeal the Court of Session may give such directions in the matter as it thinks proper, including directions as to the expenses of the appeal, and the order of the Court of Session shall be final.

(2) Any person aggrieved by the refusal of the Council to approve any institution for the purposes of the rules under this Act relating to training may appeal against the refusal to the Secretary of State and the Secretary of State, after considering the matter, shall give such directions thereon as he thinks proper, and the Council shall comply with any directions so given.

Restriction
on use of
title of
nurse and
assistant
nurse and
penalties
for misuse of
certificates
and falsifi-
cation.

6.—(1) As from such date as the Secretary of State may by order direct, any person who, not being a duly registered nurse under the principal Act or a duly enrolled assistant nurse, takes or uses the name or title of nurse, either alone or in combination with any other words or letters, shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, and in the case of a second or any subsequent offence, fifty pounds:

Provided that (without prejudice to the provisions of section eight of the principal Act)—

- (a) nothing in this subsection shall prevent a children's nurse from taking or using the name or title of nurse, unless the circumstances in which, or the words or letters in combination with which, the name or title is taken or used are such as to suggest that he is something other than a children's nurse;
- (b) the Secretary of State may by regulations authorise the use, either generally or by specified classes of persons or in

specified circumstances, of specified names or titles containing the word nurse or of the word nurse otherwise qualified in accordance with the regulations ;

PART I.
—cont.

- (c) a person shall not be guilty of an offence under this subsection by reason only that, without objection by him, other persons use the word nurse in addressing or referring to him.

(2) Any person who—

- (a) not being a person duly enrolled, takes or uses any name, title, addition, description, uniform or badge, implying that he is enrolled or is recognised by law as enrolled ; or
- (b) at any time with intent to deceive makes use of any certificate of enrolment issued to him or to any other person,

shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, and, in the case of a second or any subsequent offence, fifty pounds.

(3) If any person wilfully makes, or causes to be made, any falsification in any matter relating to the roll, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding one hundred pounds.

PART II.

AGENCIES FOR THE SUPPLY OF NURSES.

7.—(1) A person carrying on an agency for the supply of nurses shall, in carrying on that agency, only supply—

Conduct of
agencies for
supply of
nurses.

- (a) registered nurses ;
- (b) enrolled assistant nurses ;
- (c) certified midwives ;
- (d) such other classes of persons as may be prescribed.

(2) A person carrying on an agency for the supply of nurses shall, at the prescribed time and in the prescribed manner, give to every person to whom he supplies a nurse, midwife or other person a statement in writing in the prescribed form as to the qualifications of the person supplied.

(3) No person shall carry on an agency for the supply of nurses unless the selection of the person to be supplied for each particular case is made by or under the supervision of a registered nurse or a registered medical practitioner.

(4) A person carrying on an agency for the supply of nurses shall keep such records in relation thereto as may be prescribed.

PART II.
—cont.
Licensing of
agencies.

8.—(1) No person shall carry on an agency for the supply of nurses on any premises in the area of any licensing authority unless he is the holder of a licence from that authority authorising him so to do on those premises.

(2) Subject to the provisions of this section, if any person who desires to carry on an agency for the supply of nurses in the area of any licensing authority makes an application in that behalf to that authority in the prescribed form, in the prescribed manner, at the prescribed time and giving the prescribed information, and pays to that authority such fee as may be prescribed, the authority shall grant him a licence accordingly, subject, however, to such conditions as they may think fit for securing the proper conduct of the agency, including conditions as to the fees to be charged by the person carrying on the agency, whether to the nurses or other persons supplied, or to the persons to whom they are supplied.

(3) Any such application may be refused, and any such licence which has been granted may be revoked, on any of the following grounds, that is to say—

- (a) that the applicant or, as the case may be, the holder of the licence is an individual under the age of twenty-one years or is unsuitable to hold such a licence ;
- (b) that the premises are unsuitable ;
- (c) that the agency has been or is being improperly conducted ; or
- (d) that offences against this Part of this Act have been committed in connection with the carrying on of the agency.

(4) An applicant for or holder of any such licence who is aggrieved by the refusal of the licensing authority to grant such a licence, or by the revocation by the licensing authority of the licence, or by any conditions attached to the licence, may, within twenty-one days from the receipt by him of notice of the refusal or of the revocation or of the grant of the licence subject to the conditions, appeal to the sheriff within whose jurisdiction the premises are situate, who may make such order as he thinks just ; and the authority shall, if required by any such applicant or holder in writing so to do, send or deliver to him within seven days of the receipt of the requirement particulars in writing of the ground for the refusal, the revocation or the attachment of the conditions, as the case may be.

(5) An application under this Part of this Act for the grant of a licence in respect of an agency in respect of which a licence is in force at the time of the application shall not be refused and a licence under this Part of this Act shall not be revoked by a

licensing authority unless the holder has been given an opportunity of being heard by the licensing authority or a committee thereof.

(6) Every licensing authority shall in each year cause an annual meeting (either of the authority themselves or, if under any powers enabling them in that behalf, they have delegated their powers under this section to a committee, of that committee) to be held for the purpose of considering applications for licences under this Part of this Act, and every licence granted under this Part of this Act shall (unless revoked) be valid until the thirty-first day of December in the year next following that in which the licence is granted and no longer :

Provided that nothing in this subsection shall be construed as preventing the consideration of applications otherwise than at any such annual meeting.

(7) On the death of the holder of a licence under this Part of this Act, the licence shall enure for the benefit of his personal representatives, and references in this Part of this Act to the holder of such a licence shall be construed accordingly.

9. Any registered nurse or other officer duly authorised in that behalf by the licensing authority may at all reasonable times on producing, if so required, some duly authenticated document showing his authority—
Powers of entry and inspection.

- (a) enter the premises specified in any licence or application under this Part of this Act or any premises which are used, or which that officer has reasonable cause to believe are used, for the purposes of or in connection with an agency for the supply of nurses ; and
- (b) inspect those premises and the records kept in connection with any such agency as aforesaid carried on at those premises,

and no person shall obstruct any such officer in the execution of his duty.

10.—(1) Any person who carries on an agency for the supply of nurses without compliance with subsection (3) of section seven of this Act or without a licence under this Part of this Act shall be liable on summary conviction to a fine not exceeding fifty pounds and, if he continues so to do after conviction, he shall be guilty of a further offence and shall be liable on summary conviction in respect thereof to a fine not exceeding five pounds for each day on which he so continues so to carry on the agency.
Penalties.

(2) Any person who carries on an agency for the supply of nurses otherwise than in accordance with the conditions of his licence shall be liable on summary conviction to a fine not exceeding five pounds and, if the contravention in respect of which

PART II.
—*cont.*

he was so convicted is continued after the conviction, shall be guilty of a further offence and liable in respect thereof on summary conviction to a fine not exceeding two pounds for each day on which the contravention is so continued.

(3) Any person carrying on an agency for the supply of nurses who, in carrying on that agency, supplies any person in contravention of the provisions of subsection (1) of section seven of this Act, shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) Any person who—

(a) makes or causes to be made or knowingly allows to be made any entry in a record required to be kept under this Part of this Act, which he knows to be false in a material particular, or for purposes connected with this Part of this Act produces or furnishes, or causes or knowingly allows to be produced or furnished any record or information which he knows to be false in a material particular; or

(b) for the purpose of obtaining a licence under this Part of this Act makes any statement which he knows to be false in a material particular or recklessly makes any statement which is false in a material particular,

shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(5) Any person who commits any contravention of this Part of this Act for which no special penalty is thereby provided shall be liable on summary conviction to a fine not exceeding ten pounds.

(6) Where the person carrying on an agency for the supply of nurses is convicted under this Part of this Act of an offence committed in the carrying on of that agency on any premises, the court may (in lieu of or in addition to imposing any other penalty) make an order revoking the licence (if any) under this Part of this Act authorising the carrying on of that agency on those premises.

(7) Where any offence against this Part of this Act by a corporation is proved to have been committed with the consent or connivance of any director, manager, secretary or other officer of the corporation he, as well as the corporation, shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Application
of Part II
and of existing
enactments.

11.—(1) The foregoing provisions of this Part of this Act shall not apply to any agency for the supply of nurses carried on in connection with any hospital maintained or controlled by a

Government department or local authority or combination of local authorities, or by any body constituted by special Act of Parliament or incorporated by Royal Charter.

(2) Any provisions relating to employment agencies or servants registries contained in any local Act shall not apply to an agency for the supply of nurses, but this subsection shall not be taken as exempting from any such provisions any other business carried on in conjunction with an agency for the supply of nurses.

12.—(1) In this Part of this Act the following expressions have the meanings respectively assigned to them, that is to say—

“agency for the supply of nurses” means the business (whether or not carried on for gain and whether or not carried on in conjunction with another business) of supplying persons to act as nurses or of supplying persons to act as nurses and persons to act as midwives ;

“certified midwife” means a person certified under the Midwives (Scotland) Act, 1915, and includes any person who, by virtue of an order made under Defence Regulations, is for the time being deemed, for the purposes of subsection (1) of section one of the Maternity Services (Scotland) Act, 1937, to be a certified midwife ;

“county” means a county inclusive of any small burgh within the meaning of the Local Government (Scotland) Act, 1929, situate in the county ;

“licensing authority” means—

(a) in the case of a large burgh within the meaning of the last mentioned Act, the town council ;

(b) in the case of counties combined for the purposes mentioned in subsection (7) of section ten of the last mentioned Act, the joint county council ; and

(c) in the case of any other county, the county council.

(2) The Secretary of State may make regulations prescribing anything which under this Part of this Act is to be prescribed.

(3) Any expenses incurred under this Part of this Act by a county council, a joint county council or a town council shall be defrayed in like manner as expenses incurred by them under the Public Health (Scotland) Act, 1897.

60 & 61 Vict.
c. 38.

(4) This Part of this Act shall come into force on such date as the Secretary of State may by order appoint, and different dates may be appointed for different purposes and for different provisions thereof and for different areas.

PART III.

MISCELLANEOUS AND GENERAL.

Power to
prescribe
qualifications
of teachers
of nurses.

13. The power of the Council to make rules under section three of the principal Act shall extend to the making of rules providing for the giving of certificates by or under the authority of the Council to persons who have undergone the prescribed training (being training carried out in an institution approved by the Council in that behalf) and, if the rules so provide, passed the prescribed examinations in the teaching of nursing.

Reduction in
certain cases of
period of
training for
admission
to register.

14. In order that persons enrolled as assistant nurses, who have at any time before their admission to the roll undergone training with a view to qualifying for admission to the register, but have not so qualified, may be encouraged so to qualify, the Council shall, by rules under section three of the principal Act, provide for such reduction as they may think appropriate in the case of such persons of the period of training prescribed under the said section.

Penalty for
false repre-
sentation that
another is a
registered or
enrolled nurse.

15. Any person who, knowing that some other person is not registered or enrolled, makes any statement or does any act calculated to suggest that that other person is registered or enrolled shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, and, in the case of a second or any subsequent offence, fifty pounds.

Procedure
as to rules
and
regulations.

16.—(1) At least thirty days before making any rules under section three of the principal Act or under Part I of this Act notice of the proposal to make the rules, and of the place where copies of the draft rules may be obtained, shall be published by the Council in the Edinburgh Gazette, and in such other manner as the Council think best adapted for ensuring publicity.

(2) Rules made by the Council under section three of the principal Act or under Part I of this Act shall not come into operation unless and until they are approved by the Secretary of State.

(3) Every such rule so approved, and every regulation made under this Act by the Secretary of State, shall be laid before each House of Parliament forthwith, and, if, within the next forty days, either House of Parliament resolves that the rule or regulation shall be annulled, the rule or regulation shall thereupon cease to have effect, without prejudice, however, to the validity of anything previously done thereunder or to the making of a new rule or regulation.

In reckoning the said period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(4) Subsections (4) (5) and (6) of section three of the principal Act are hereby repealed, except as respects rules made before the passing of this Act.

PART III.
—cont.

17.—(1) Subsection (3) of section two of the principal Act (which provides that a certificate under the seal of the Council, duly authenticated, stating that a person is, or was at any date, or is not, or was not at any date, duly registered under that Act shall be conclusive evidence in all courts of law of the fact stated in the certificate) shall have effect with the omission of the word "conclusive."

Amendment
of s. 2 (3),
s. 3 (2) and
s. 8 (2) of
principal Act.

(2) Subsection (2) of section three of the principal Act (which relates to rules with respect to the conditions of admission to the register) shall have effect as if in paragraph (b) thereof the word "either" were omitted and after the words "Air Council" there were inserted the words "or in a hospital managed by a Government Department."

(3) Subsection (2) of section eight of the principal Act (which relates to falsification of the register) shall have effect with the substitution for the words "a crime and" of the word "an", and with the substitution for the words "on conviction thereof" of the words "on summary conviction".

18.—(1) The Council shall form and keep a list, subject to and in accordance with the provisions of the Second Schedule to this Act, of such persons as are mentioned in the next succeeding subsection, and the provisions of that Schedule shall have effect in relation to the list.

List of certain
nurses not
registered or
enrolled.

(2) The said persons are any persons, not being registered nurses or enrolled assistant nurses, who, within two years from the passing of this Act, apply, on a form provided for the purpose by the Council, for admission to the list, who hold certificates issued by institutions which appear to the Council to be satisfactory for the purposes of this provision stating that they completed before the beginning of October, nineteen hundred and twenty-five, a course of training in nursing in the institution, and who satisfy the Council that they are of good character and have adequate knowledge and experience of nursing.

(3) Any person who—

(a) being a person whose name is included in any part of the list, says or does anything implying that his name is included in some other part thereof; or

(b) at any time with intent to deceive makes use of any certificate issued to him or to any other person as a person included in the list,

shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, and, in the case of a second or any subsequent offence, fifty pounds.

PART III.
—cont.

(4) If any person wilfully makes, or causes to be made, any falsification in any matter relating to the list, he shall be guilty of an offence and shall on summary conviction be liable to a fine not exceeding one hundred pounds.

Application of
fees, and
expenses of
Council.

19. Any sums received by the Council by way of fees under this Act shall be dealt with by the Council as if they had been received by way of fees under the principal Act, and any expenses incurred by the Council in carrying Parts I and III of this Act into effect (including expenses in connection with examinations and any travelling expenses or subsistence allowances duly allowed to members of the Committee) shall be defrayed out of fees received by the Council.

Interpreta-
tion.

20. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively :—

“ the roll ” means the roll of assistant nurses established under Part I of this Act, and “ enrol ” and “ enrolment ” shall be construed accordingly ;

9 & 10 Geo. 5.
c. 95.

“ the principal Act ” means the Nurses Registration (Scotland) Act, 1919 ;

“ nurse ” means a nurse for the sick and “ nursing ” shall be construed accordingly ;

“ the register ” means the register of nurses established under the principal Act, and “ registered ” shall be construed accordingly ;

“ children’s nurse ” means a person whose avocation is that of caring for children.

Short title,
citation and
extent.

21.—(1) This Act may be cited as the Nurses (Scotland) Act, 1943, and this Act and the principal Act may be cited together as the Nurses (Scotland) Acts, 1919 and 1943.

(2) This Act shall extend to Scotland only.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

CONSTITUTION AND PROCEEDINGS OF ASSISTANT NURSES COMMITTEE.

1. The Committee shall consist of five persons appointed by the Council and four representatives of assistant nurses.

The persons appointed by the Council shall be members of the Council, but at least one of them shall not be a registered nurse.

2. On the first constitution of the Committee the four representatives of assistant nurses shall be appointed by the Secretary of State after consultation with such persons and bodies as he thinks fit; being persons and bodies having special knowledge and experience of the work of assistant nurses.

3. The first members of the Committee shall hold office for three years from the first constitution of the Committee or such longer period as the Secretary of State may from time to time determine.

4. After the expiration of the term of office of the first members of the Committee, three of the four representatives of assistant nurses shall be such persons, being registered nurses or enrolled assistant nurses, as may be elected in accordance with the prescribed scheme and in the prescribed manner by persons enrolled on the date of the election, and the remaining representative of assistant nurses shall be appointed by the Secretary of State.

5. Any members of the Committee other than the first members thereof shall hold office for a term of five years.

6. If the place of a member of the Committee becomes vacant before the expiration of his term of office, whether by death, resignation or otherwise, the vacancy shall be filled, if the member was appointed by the Council, by the Council, and, if the member represented assistant nurses, by the Secretary of State.

Any person appointed to fill a casual vacancy shall hold office only so long as the member in whose stead he is appointed would have held office.

7. Any person ceasing to be a member of the Committee shall be eligible for re-appointment or re-election.

8. The powers of the Committee may be exercised notwithstanding any vacancy in their number.

9. The chairman of the Committee shall be such one of the members of the Committee, being a member appointed by the Council, as may be selected by the Committee.

10. The quorum of the Committee shall be four.

11. The Committee may, with the approval of the Council, make standing orders regulating the summoning of meetings of the Committee and the proceedings of the Committee.

Section 18.

SECOND SCHEDULE.

LIST OF NURSES NOT REGISTERED OR ENROLLED.

1. Every person admitted to the list shall be granted a certificate of admission thereto by the Council.

2. A certificate under the seal of the Council duly authenticated stating that any person is or was at any date, or is not or was not at any date, included in the list shall be evidence in all courts of law of the fact stated in the certificate.

3. The list shall be printed and published as an appendix to the register, and shall (except for such modifications as may be necessary in the form of any documents) be kept in respect of the following matters in the same way as the register, that is to say—

- (a) the parts into which it is divided ;
- (b) the payment and amount of any fees on an application for admission or for any certificate issued by the Council ;
- (c) the procedure, and the payment and amount of any fees, for the retention or re-inclusion of a name in the list ;
- (d) the circumstances in which a name may be removed from the list and the procedure for the removal,

and the removal of any name from the list shall be subject to the same right of appeal as in the case of the register.

4. Any person included in any part of the list kept in England and Wales under section eighteen of the Nurses Act, 1943, and, if provision is made by the Parliament of Northern Ireland for the establishment of a similar list in Northern Ireland, any person included in any part of that list shall be entitled to be admitted to the corresponding part of the list under this Act on production of similar evidence and payment of the same fees as are required in the case of a nurse registered in England and Wales or Northern Ireland who seeks admission to the register.

5. In this Schedule references to the list shall, unless the context otherwise requires, include references to a part of the list.

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